EUROPEAN COMMISSION
DG Competition

Case M.11536 – CONSTANTIA / ALUFLEXPACK

Only the English text is available and authentic.

REGULATION (EC) No 139/2004
MERGER PROCEDURE

Decision on the implementation of the commitments - Purchaser approval
Date:06/05/2025

EUROPEAN COMMISSION

Brussels, 6.5.2025
C(2025) 2907 final

PUBLIC VERSION

In the published version of this decision, some information has been omitted pursuant to Article 17(2) of Council Regulation (EC) No 139/2004 concerning non-disclosure of business secrets and other confidential information. The omissions are shown thus […]. Where possible the information omitted has been replaced by ranges of figures or a general description.

Constantia Flexibles Group GmbH
Handelskai 92
1200 Vienna
Austria

Subject: Case M.11536 – CONSTANTIA / ALUFLEXPACK
Approval of MTX Group as purchaser of Constantia's Divestment Business following your letter of 3 March 2025 and the Trustee's opinion of 14 April 2025

Dear Sir or Madam,

1. FACTS AND PROCEDURE

(1) By decision of 29 January 2025 (the 'Decision') based on Article 6(1)(b) in connection with Article 6(2) of Council Regulation (EC) No 139/2004 (the 'Merger Regulation') ([1]), the Commission declared the operation by which Constantia Flexibles GmbH ('Constantia' or the 'Notifying Party', Austria) acquired within the meaning of Article 3(1)(b) of the Merger Regulation sole control of the whole of Aluflexpack AG ('AFP' or the 'Target', Switzerland) (together the 'Parties'), compatible with the internal market, subject to conditions and obligations (the 'Commitments').

(2) The Commitments consist of the divestment of AFP's entire business of retortable aluminium containers and lids for wet pet food and for human food in the EEA. This removes the complete overlap between the Parties' activities in these two markets. In addition, several other products supplied by the Omial Plant will be

([1]) Council Regulation (EC) No 139/2004 of 20 January 2004 on the control of concentrations between undertakings, OJ L 24, 29.1.2004, p.1.

divested, i.e., (i) retortable wet pet and human food containers and lids to non-EEA customers, (ii) cheese and dairy non-retortable containers, (iii) other non-retortable human food containers, (iv) injection systems, (v) other non-food packaging and (vi) pre-treated foil. The divestment is subject to the carve-out of certain minor assets, and contracts not related to AFP's retortable wet pet or human food business, and limited carve-ins from AFP's PPS plant and AFP Novi (Drniš and Zadar plants). ([2])

(3) The assets to be divested under the Commitments are collectively referred to as the 'Divestment Business'. Specifically, the following main assets are included in the Divestment Business:

(a) Omial Novi d.o.o ('Omial Novi'), the legal entity which operates AFP's Omial plant;

(b) All relevant assets, contracts, and personnel related to the entire EEA retortable wet pet and human food containers and lids business of AFP;

(c) A transitional services agreement ('TSA') with respect to current supply relationships with the broader AFP group for a transitional period of [confidential logistic arrangements] after Closing, covering, inter alia, the supply of pre-treated aluminium foil for aluminium lids, the supply of printed lids, and of IT related services, at cost basis. The TSA can be extended by up to [confidential logistic arrangements] initially, if necessary for the Divestment Business' viability. The TSA can be further extended beyond [confidential logistic arrangements] by periods of [confidential logistic arrangements], still at cost, to cover for existing customers of the Divestment Business that have not yet been qualified despite the purchaser of the Divestment Business (the 'Purchaser') having committed their reasonable best efforts to qualify such customers, and if deemed necessary to ensure the viability of the Divestment Business;

(d) A technology transfer agreement ('TTA') for a period of [confidential logistic arrangements] post-Closing. The relevant period of the TTA can be extended by up to [confidential logistic arrangements] if such extension is necessary to ensure the viability of the Divestment Business and subject to the Monitoring Trustee's consent, until the Divestment Business' customers have qualified the pre-treated foil supplied by the Purchaser or a third-party supplier. If further extensions are requested by the Purchaser and are deemed necessary to ensure the viability of the Divestment Business (i.e., to cover for existing Divestment Business' customers that have not yet been qualified despite the Purchaser having committed their reasonable best efforts to qualify such customers) and subject to the Monitoring Trustee's consent, such extensions can be provided for successive up to [confidential logistic arrangements] periods under the same terms. The TTA includes access to the following:

– (i) AFP's specifications for retortable lidding and the accompanying co-extrusion process (including the bill of materials, rooting, and technical procedures), (ii) AFP's homologation / qualification records with respect to customers of retortable food lidding and (iii) reasonable access to AFP's co-extrusion assets for the Purchaser to

([2]) Commitments, paragraph 5.

test its own plain foil and related raw materials on AFP's co-extrusion assets;

– any additional know-how and technical documentation that fulfils the following cumulative criteria: (i) is required for the order of the required co-extrusion line or the production of co-extruded foil used to produce retortable human and wet pet food lidding to fulfil the orders of the customers of the Divestment Business, and (ii) is requested by the Purchaser.

(e) The business covering various products supplied by the Omial Plant other than the EEA retortable wet pet and human food containers and lids business, namely (i) retortable wet pet and human food containers and lids to non-EEA customers, (ii) cheese and dairy non-retortable containers, (iii) other non-retortable human food containers, (iv) injection systems, (v) other non-food packaging and (vi) pre-treated foil.

(4) The Divestment Business includes tangible and intangible assets (including intellectual property rights) and personnel that contribute to its current operation or are necessary to ensure its viability and competitiveness.

(5) It also includes all licences, permits and authorisations issued by any governmental organisation for the benefit of the Divestment Business.

(6) The Divestment Business will not include AFP's upstream production assets for pre-treated (co-extruded) aluminium foil which AFP currently uses for the production of retortable aluminium lids for wet pet and human food, currently located in AFP's [details of the parties' divestment strategy and business activities related to local presence]. The Divestment Business will not include intangible assets, intellectual property rights and know-how relevant exclusively to the supply of aluminium coffee capsules or pre-treated foil for aluminium coffee capsules, which will be transferred out of the Omial plant.

(7) The Commitments provide that the Purchaser will meet the following criteria:

(a) The Purchaser shall be independent of and unconnected to the Parties and their Affiliated Undertakings (i.e. undertakings controlled by the Parties and/or by the ultimate parents of the Parties, this being assessed having regard to the situation following the divestiture);

(b) The Purchaser shall have the financial resources, proven expertise and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors;

(c) The acquisition of the Divestment Business by the Purchaser must neither be likely to create, in light of the information available to the Commission, prima facie competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the Purchaser must reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business.

(8) By letter of 3 March 2025 (the 'Reasoned Proposal'), the Parties proposed MTX Group a.s. ('MTX'or the 'Proposed Purchaser') for approval by the Commission as purchaser of the Divestment Business and submitted the Sale and Purchase Agreement (the 'SPA') and related agreements (the 'Proposed Agreement'). On

14 April 2025, Monitoring Trustee Partners (the 'Trustee') submitted an assessment of MTX's suitability as a purchaser and, in particular, indicated that it fulfils the criteria of the purchaser requirements in Section D of the Commitments attached to the Decision (the 'Reasoned Opinion'). In this assessment, the Trustee also indicated that, on the basis of the Proposed Agreement, the Divestment Business would be sold in a manner consistent with the Commitments. ([3])

2. ASSESSMENT OF THE PROPOSAL

2.1. Suitable purchaser criteria

(9) Pursuant to the Commitments, ([4]) in order to be approved by the Commission, the Purchaser must fulfil the following criteria:

(a) The Purchaser shall be independent of and unconnected to the Parties and their Affiliated Undertakings (this being assessed having regard to the situation following the divestiture);

(b) The Purchaser shall have the financial resources, proven expertise and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors;

(c) The acquisition of the Divestment Business by the Purchaser must neither be likely to create, in light of the information available to the Commission, prima facie competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the Purchaser must reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business.

2.2. Assessment of the Proposed Purchaser

2.2.1. Description of the Proposed Purchaser

(10) MTX is a Europe-based holding company active in more than 40 countries. MTX was founded in 2006 and its key business areas are: (i) packaging, and flexible packaging in particular; (ii) non-ferrous metals; (iii) energy commodities; (iv) trading; (v) services; and (vi) renewable resources. MTX is active in packaging via its subsidiary AL INVEST Břidličná, a.s. ('AL Invest'), which produces flexible packaging for food, non-food, animal feed, industry, and household applications. ([5])

2.2.2. Independence from the Parties

(11) The Parties submit that MTX and its affiliates are independent from, and unconnected to, One Rock Capital ('ORC') and its controlled portfolio companies (including Constantia), AFP, and their respective affiliates. In particular, according to the Parties, neither MTX, nor any of its affiliates have any direct or indirect ownership interests in Constantia, AFP, or any of their affiliates. No

([3]) Reasoned Opinion, Section 8.
([4]) Commitments, paragraph 21.
([5]) Reasoned Proposal, paragraphs 9 and 11.

director of MTX, nor any of its affiliates is serving as a member of the board of Constantia or AFP. Neither Constantia nor AFP, nor any of their respective affiliates have any direct or indirect ownership interest in MTX and its affiliates. No director of Constantia, AFP, or their respective affiliates, is on the board of any entity controlled by MTX or its affiliates. Finally, the Parties submit that, from a commercial perspective, there are no commercial links between MTX and Constantia or AFP which would give rise to any dependencies. ([6])

(12) For completeness, the Parties note that MTX is one of Constantia's suppliers of plain aluminium foil. The Parties argue that this specific relationship cannot give rise to any dependencies as it accounts for a negligible part of the Parties' sales / supplies. More concretely, in 2024 Constantia sourced plain aluminium foil amounting to approx. EUR [details of the parties' sales] from MTX. This amount represented (i) only [details of the parties' sales] of Constantia's total purchases of plain aluminium foil in 2024, and (ii) approx. [details of the parties' sales] of MTX's total sales and [details of the parties' sales] of MTX's total sales of plain aluminium foil. ([7])

(13) In its Reasoned Opinion, the Trustee submits that the Proposed Purchaser, the Parties, and their affiliated undertakings are independent when it comes to institutional ties. ([8]) The Trustee notes that there are no common shareholders between ORC (including Constantia and AFP) and its controlled companies, on the one hand, and MTX and its Affiliated Undertakings, on the other hand. ([9]) The Trustee further notes that none of the members of the board of directors of ORC or Constantia is active as a member of the board of directors of MTX, and vice versa. ([10]) The Trustee also considers that the existing customer/supply arrangement does not impede the independence of MTX from the Parties (and vice versa) and therefore considers that MTX is independent of, and unconnected to, ORC and its Affiliated Undertakings (including Constantia), when it comes to any commercial relationships. ([11]) Therefore, the Trustee concludes that MTX is independent of, and unconnected to, the Parties (including Constantia's controlling shareholder ORC), and their Affiliated Undertakings.

(14) The Commission agrees with the assessment of the Trustee. Based on the information provided, there are no cross-shareholdings, common board members, or structural links between ORC (including Constantia and AFP) or any of its controlled companies, and MTX. Furthermore, while Constantia sources some amounts of plain aluminium foil from MTX, these volumes are very limited and therefore do no impede the independence of MTX from the Parties (and vice-versa).

(15) In light of the foregoing, the Commission concludes that the Proposed Purchaser is independent and unconnected to ORC, Constantia, AFP, or any of its controlled companies.

2.2.2.1. Financial resources

(16) According to paragraph 21 of the Commitments, the Purchaser shall have the financial resources to maintain and develop the Divestment Business as a viable

([6]) Reasoned Proposal, paragraphs 13-17.
([7]) Reasoned Proposal, paragraph 18.
([8]) Reasoned Opinion, Section 4.5.
([9]) Reasoned Opinion, Section 4.2.2.
([10]) Reasoned Opinion, Section 4.2.3.
([11]) Reasoned Opinion, Section 4.3.3.

and active competitive force in competition with the Parties and other competitors.

(17) According to the Notifying Party:

(a) MTX is a profitable business that demonstrates robust financial performance. In 2023, MTX reported revenues of EUR [details of the parties' revenues], and [details of the parties' revenues] EBITDA. MTX's sales and EBITDA for 2024 remain in line with the 2023 figures.

(b) MTX does not require any third-party financing for the Divestment Transaction. Although MTX may decide to use third-party financing if the financing is provided under attractive commercial conditions, such third-party financing is not required for the acquisition.

(18) Therefore, the Parties submit that MTX has sufficient financial resources to (i) pay the purchase price under the SPA to close the Divestment Transaction pursuant to the terms of the SPA, and (ii) ensure that the Divestment Business remains a viable and active competitor from, and after, the closing of the Divestment Transaction, including by investing additional funds in the Divestment Business. ([12])

(19) The Trustee considers that MTX has sufficient financial resources and capabilities to acquire the Divestment Business and to maintain and develop it going forward. In particular, the Trustee notes that (i) MTX has not included any financing condition in the SPA, and (ii) that MTX has sufficient funds on-hand to finance the investment in the co-extrusion line. ([13])

(20) The Commission notes that MTX Group is quite sizable and profitable, both in absolute terms and compared to the Divestment Business. Moreover, it has shown a sustainable financial performance in all the presented years (2021 to 2023). Finally, the Commission notes that, on the basis of the information provided by the Trustee, MTX has secured enough financial resources to finance both the acquisition of the Divestment Business and the investment of the co-extrusion line.

(21) In light of the foregoing, the Commission concludes that the Proposed Purchaser has the financial resources to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors.

(22) In summary, the Commission concludes that MTX is in a sustainable and healthy financial position. It can finance the acquisition of the Divestment Business, as well as the share of the coextrusion line attributable to the acquisition of the Divestment Business, out of its currently available financial reserves. The acquisition will not increase the risk of its overall business model due to the acquisition's small size relative to MTX's overall business, MTX's low financial leverage and MTX's intention to finance the acquisition of the Divestment Business and the coextrusion line out of its currently available financial reserves.

2.2.2.2. Proven expertise

(23) The Parties submit that MTX has the proven expertise to maintain and develop the Divestment Business as a viable and active competitor. ([14]) The Parties argue

([12]) Reasoned Proposal, paragraphs 19-22.
([13]) Reasoned Opinion, Section 6.2.1. and 6.2.2.
([14]) Reasoned Proposal, Section II A.

that (i) MTX is an experienced player in flexible packaging, including in aluminium flexible packaging; and (ii) MTX's size, existing business / production capabilities and packaging industry knowledge will allow for a quick and effective integration of the Divestment Business. In particular, the Parties note that MTX is well-positioned to integrate the Divestment Business into its existing flexible packaging segment by: (i) securing its financial stability and mitigating risk, (ii) supporting sales and customers through its established sales team and customer contacts in the packaging industry, (iii) sourcing aluminium and lidding foil in the required specifications both internally and from third-party suppliers, (iv) covering the Divestment Business' hedging activities and (v) ensuring the Divestment Business' quick IT transition with the support of designated MTX IT personnel. ([15])

(24) Based on its assessment of MTX's expertise in the flexible packaging industry, the Trustee considers that the company fulfils this part of the Purchaser Criteria as included in paragraph 21 (b) of the Commitments. ([16]) In particular, the Trustee notes that (i) packaging is one of MTX's core business divisions; (ii) MTX has an established sales team and customer contacts in the packaging industry; (iii) MTX is a vertically integrated player, sourcing aluminium and lidding foil in the required specifications both internally and from third-party suppliers; (iv) MTX is very familiar with the hedging requirements for aluminium and other base materials, and (v) intercompany operations and security platform synergies within the company should guarantee the Divestment Business' swift and smooth IT transition. ([17])

(25) The Commission notes that, in line with the submission of the Parties and the view of the Trustee, MTX is an experienced player in the flexible packaging sector, including aluminium. The Commission further notes that MTX has a dedicated sales team and customer contacts in the industry. Finally, due to being vertically integrated and a relevant actor in the aluminium industry, MTX is well-placed to source aluminium foil both internally and externally and to ramp up its production of co-extruded aluminium foil for the needs of the Divestment Business.

(26) In light of the foregoing, the Commission concludes that the Proposed Purchaser has the proven expertise to maintain and develop the Divestment Businesses as a viable and active competitor.

2.2.2.3. Incentive to maintain and develop the Divested Business as a viable and active competitor

(27) The Parties submit that MTX has the incentive to maintain and develop the divestment business as a viable and active competitive force. ([18]) In particular, the Parties submit that (i) MTX sees the acquisition of the Divestment Business as highly complementary and in line with the strategic vision to expand its product portfolio; (ii) the acquisition of the Divestment Business provides an opportunity for MTX to expand also in the supply of retortable wet pet and human food containers and lids; and (iii) such expanded reach will also provide MTX with an additional return on investment related to its [details of the parties' strategy and business activities]. Therefore, according to the Parties, given these strategic and

([15]) Reasoned Proposal, paragraphs 24-27.
([16]) Reasoned Opinion, Section 6.3.3.
([17]) Reasoned Opinion, Section 6.3.2.
([18]) Reasoned Proposal, Section II B.

financial motives, MTX has strong incentives to ensure the viability (and the growth) of the Divestment Business, but also to foster its long-term growth and competitiveness. ([19])

(28) MTX outlined to the Trustee that it has the following incentives to maintain and develop the Divestment Business. ([20])

(a) The Divestment Business is a complementary addition to MTX's product offering, in line with MTX's strategic vision to expand its product portfolio: The Trustee understands that the acquisition of the Divestment Business provides a good opportunity for MTX to expand its current (packaging) product portfolio (currently comprising (i) flexible packaging for dry pet food and (ii) lidding and laminates for end uses such as dairy, aviation catering, and butter laminates) to the supply of retortable wet pet and human food containers and lids.

(b) The technological know-how and highly skilled workforce that comes with the Omial plant. With the acquisition of the Divestment Business, MTX obtains a fully operational set of assets and workforce that supports a new product category in (flexible) packaging.

(c) Increasing MTX's competitiveness: As per MTX, the acquisition of the Divestment Business will significantly improve MTX's market position in aluminium-based flexible packaging through a competitive advantage vis-à-vis large players such as Constantia and Amcor, as MTX [details of the parties' strategy and business activities].

(29) Based on the above, the Trustee concludes that MTX has the incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors. ([21])

(30) The Commission agrees with the Trustee's opinion that the acquisition of the Divestment Business constitutes an important strategic step for MTX to expand its product portfolio and leads to synergies for the wider MTX group. The Commission further notes that the purchase of the Divestment Business will lead to a higher return-on-investment on MTX's [details of the parties' strategy and business activities]. Therefore, the Commission considers that the success of the acquisition is a high priority for MTX.

(31) In light of the foregoing, the Commission concludes that the Proposed Purchaser has the incentive to maintain and develop the Divestment Businesses as a viable and active competitor and well-capitalised.

2.3. Absence of prima facie competition problems

(32) According to paragraph 21 of the Commitments, the acquisition of the Divestment Business by the Purchaser must neither be likely to create, in light of the information available to the Commission, prima facie competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the Purchaser reasonably must be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of Divestment Business.

([19]) Reasoned Proposal, paragraphs 28-29.
([20]) Reasoned Opinion, Section 6.4.
([21]) Reasoned Opinion, Section 6.4.

(33) The Notifying Party submits that the acquisition of the Divestment Business by MTX cannot give rise to any prima facie competition concerns, nor any risk that the implementation of the Commitments will be delayed. ([22])

(34) With respect to possible horizontal overlaps between the activities of MTX and the Divestment Business, the Notifying Party submits that MTX is not active in the supply of retortable aluminium containers and lids for wet pet and human food while these products represent that vast majority, more than 80%, of the Divestment Business sales. ([23]) The Notifying Party further notes that the Divestment Business supplies exclusively containers for cheese and dairy, while MTX's focus is predominantly on cheese and dairy wrapping and lidding. According to the Notifying Party, while MTX and the Divestment Business are both active in the supply of pre-treated foil for various end-use applications, the supply of pre-treated foil in the EEA is a fragmented space with numerous large and strong suppliers of pre-treated aluminium foil. ([24])

(35) As to the vertical links, the Notifying Party submits that there are no actual vertical links between MTX and the Divestment Business. No potential vertical relationship can give rise to competitive concerns either since the supply and demand for pre-treated foil is a fragmented and competitive space with numerous large players offering. ([25])

(36) However, the Commission notes, in accordance with the Reasoned Opinion, ([26]) that a small share of the Divestment Business sales is concerned by a horizontal overlap with MTX (i.e., less than 20% of the sales). Moreover, the Trustee indicates that for all these horizontal overlaps (i.e., the supply of flexible packaging for cheese and dairy and the supply of pre-treated foil for various end-use applications) the combined market share of the Divestment Business and MTX ([27]) remains below 20%. In addition, the Trustee has not identified any vertical competition or foreclosure concerns involving the supply of pre-treated foil, in particular due to the fact that neither MTX ([28]) nor the Divestment Business hold an individual or combined market share above 30% at any level. ([29]) For completeness, the Commission notes that MTX does not supply pre-treated foil for human food and wet pet food which are the market where concerns were raised.

(37) In addition, the Trustee confirmed that the acquisition of the Divestment Business is not subject to any regulatory nor governmental approvals. ([30])

(38) On the basis of the above and taking into account the Reasoned Opinion submitted by the Trustee, the Commission concludes that the acquisition of the Divestment Businesses by MTX. is neither likely to create prima facie competition concerns, nor give rise to a risk that the implementation of the Commitments will be delayed.

([22]) Reasoned Proposal, paragraph 30 and following.
([23]) Reasoned Proposal, paragraph 30 and following.
([24]) These include according to the Notifying Party: Amcor, Laminazione Sottile, Aluminium Feron, Alucoat, Novelis, Impol, Hydro Aluminium, Iberfoil, Alupol, Speira, Aluberg, Carcano, Royal Vaassen, Gascogne Laminates, Leipa, and Symetal.
([25]) Reasoned Proposal, paragraph 30 and following.
([26]) Reasoned Opinion, section 6.5.2.
([27]) [Confidential information on mtx's ownership structure].
([28]) [Confidential information on mtx's ownership structure].
([29]) Reasoned Opinion, section 6.5.2.
([30]) Reasoned Opinion, section 6.5.3.

(39) This prima facie assessment is based on the information available for the purpose of this buyer approval and does not prejudge the competition assessment of the acquisition of the Divestment Business by a competent competition authority under applicable merger control rules.

2.4. Sale in a manner consistent with the Commitments

(40) The acquisition of the Divestment Business by MTX will be carried out under the SPA dated 18 December 2024 ([31]), including the main ancillary documents, namely the TSA, the Supply Agreement ('SA'), and the TTA, (all together 'Transaction Documents').

(41) The Parties confirmed that pursuant to the Transaction Documents, the Divestment Business is being sold in a manner consistent with the Commitments. ([32])

(42) The Trustee performed a detailed comparison between the Transaction Documents and the Commitments and observed no material deviations between the Commitments and the Transaction Documents. In particular, the Trustee notes that, in line with the Commitments, the products to be supplied to the MTX as per the SA are "at cost". The Trustee further notes that appropriate incentives schemes for key personnel, including the personnel to be potentially transferred in the context of the TTA, are provided for. ([33])

(43) Finally, the Trustee notes that it has explicitly interacted with MTX and received the confirmation from the latter that it is satisfied with the manner the Commitments are reflected in the Transaction Documents. ([34])

(44) The Commission notes in addition to the above that the TTA provides, as foreseen in the Commitments, for the possibility for the Proposed Purchaser to obtain, at no cost, access to the necessary know-how and technical documentation to order the required co-extrusion line and to produce the co-extruded foil. ([35])

(45) For completeness, the amendment to the Transaction Documents explicitly specifies that if there is any conflict between the terms of the Transaction Documents and the provisions of the Commitments, the provisions of the Commitments shall prevail.

(46) Based on the above and in line with the Reasoned Opinion by the Trustee, the Commission concludes that the Divestment Business is being sold in a manner consistent with the Decision and the Commitments.

([31]) Including certain amendments to the SPA, the first one dated 6 February 2025 and the second one dated 29 April 2024.

([32]) Reasoned Proposal, paragraph 37. The Trustee further notes that the same also applies to the products that MTX supplies to the Parties as per the Reverse Supply Agreement. The latter is not a requirement per the Commitments but a commercial agreement between the Parties and MTX. Given the relatively low volumes and the relatively short term of these reverse supplies, the Trustee deems this not to be problematic.

([33]) Reasoned Opinion, section 5.4.3.

([34]) Reasoned Opinion, section 5.4.2.

([35]) This includes in particular (i) AFP's specifications for retortable lidding and the accompanying co-extrusion process (including the bill of materials, rooting, and technical procedures), (ii) AFP's homologation / qualification records with respect to customers of retortable food lidding and (iii) reasonable access to AFP's co-extrusion assets for the Proposed Purchaser to test its own plain foil and related raw materials on AFP's co-extrusion assets.

3. CONCLUSION

(47) Based on the above assessment, the Commission approves MTX as a suitable purchaser for the above-mentioned reasons.

(48) Based on the Transaction Documents, the Commission further concludes that the Divestment Business is being sold in a manner consistent with the Commitments.

(49) This decision only constitutes approval of the Proposed Purchaser identified herein and of the Transaction Documents. This decision does not constitute a confirmation that Constantia has complied with its Commitments.

(50) This decision is based on paragraph 22 of the Commitments attached to the Commission Decision of 29 January 2025.

For the Commission

(Signed)
Olivier GUERSENT
Director-General
Directorate-General for Competition